

SOFTWARE SUBSCRIPTION AND SERVICES AGREEMENT

Rally, Inc. & Ironclad Fitness Group, LLC

This Agreement (this “Agreement”) is made and entered into as of May 15, 2026 (the “Effective Date”) by and between Rally, Inc., a Delaware corporation (“Provider”), and Ironclad Fitness Group, LLC (“Customer”), each a “Party” and collectively the “Parties.”

WHEREAS, Provider is in the business of providing member engagement and scheduling software subscription services to multi-location fitness and wellness operators; and WHEREAS, Customer desires to engage Provider to provide such services, and Provider desires to provide such services to Customer, subject to the terms and conditions set forth in this Agreement; NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

Article 1. Definitions

For purposes of this Agreement, the following capitalized terms shall have the meanings set forth below. Other capitalized terms used but not defined in this Article shall have the meanings given to them elsewhere in this Agreement.

“Affiliate” means any entity that directly or indirectly controls, is controlled by, or is under common control with a party, where 'control' means ownership of more than fifty percent (50%) of the voting securities of such entity.

“Authorized User” means an employee, contractor, or agent of Customer who has been granted access to the Services by Customer and who is bound by confidentiality obligations no less protective than those set forth in this Agreement.

“Confidential Information” means any non-public information disclosed by one party to the other, whether orally, in writing, or by inspection, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

“Deliverables” means any work product, reports, code, documentation, or other materials specifically created by Provider for Customer under this Agreement or an applicable Statement of Work.

“Fees” means the amounts payable by Customer to Provider as set forth in Article 4 (Fees and Payment) and Exhibit A attached hereto.

“Force Majeure Event” means any event beyond the reasonable control of the affected party, including acts of God, natural disaster, war, terrorism, embargo, act of civil or military authority, fire, flood, or failure of third-party telecommunications or internet infrastructure.

“Intellectual Property Rights” means all patent rights, copyright rights, trade secret rights, trademark rights, and other intellectual property rights as may exist now or hereafter come into existence under the laws of any jurisdiction.

“Losses” means any and all losses, damages, liabilities, deficiencies, claims, actions, judgments, settlements, interest, awards, penalties, fines, costs, or expenses of whatever kind, including reasonable attorneys' fees.

“Services” means the services described in this Agreement and any applicable Statement of Work, to be provided by Provider to Customer.

“Subscription Services” means Provider's hosted member engagement and class scheduling software offered on a subscription basis, as described in Exhibit A.

“Term” has the meaning set forth in Article 6 (Term and Termination).

Article 2. Services

Provider shall make the Subscription Services available to Customer for use at Customer's locations identified in Exhibit A, subject to the terms of this Agreement. Provider shall perform onboarding and configuration services and shall implement the API integration described in Exhibit A to connect the Subscription Services with Customer's existing point-of-sale system.

Customer shall be responsible for training its own staff on use of the Subscription Services, using training materials made available by Provider. Provider shall provide standard email and chat support during business hours as part of the Standard Tier subscription.

Article 3. Fees and Payment

The total contract value for the Initial Term is \$54,600.00, comprised of the itemized fees set forth below. All fees are quoted and payable in USD. Payment terms: Net 30 from the date of each invoice. Subscription fees are invoiced annually in advance beginning on the Effective Date. Onboarding and integration fees are invoiced upon execution of this Agreement.

Late payments not disputed in good faith shall accrue interest at the rate of one and one-half percent (1.5%) per month, or the maximum rate permitted by applicable law, whichever is lower. Customer shall reimburse Provider for all reasonable costs of collection, including attorneys' fees, incurred in connection with the recovery of any past-due amounts.

All fees are exclusive of applicable taxes, which Customer shall be responsible for except for taxes based on Provider's net income. Provider shall have the right to increase Fees for any renewal term upon at least sixty (60) days' prior written notice to Customer.

Exhibit A — Pricing Schedule

The following summarizes the pricing for the Services under this Agreement. In the event of any conflict between this summary and the fee provisions of the main body of this Agreement, this Exhibit A shall govern with respect to itemized pricing.

Item	Description	Qty	Unit Price	Amount
1	Subscription — Standard Tier (Annual)	1	\$36,000.00	\$36,000.00
2	Onboarding & Setup Package	1	\$9,600.00	\$9,600.00
3	API Integration Add-on	1	\$9,000.00	\$9,000.00
			Total	\$54,600.00

Article 6A. Data Ownership and Use

As between the parties, Customer owns all data uploaded to or generated through Customer's use of the Subscription Services ("Customer Data"). Provider shall use Customer Data solely to provide the Subscription Services and shall not sell Customer Data to any third party.

Provider may use de-identified, aggregated data derived from Customer Data for purposes of improving the Subscription Services and for benchmarking, provided that such de-identified data does not identify Customer or any individual member.

Article 6. Term and Termination

This Agreement shall commence on the Effective Date and continue for an initial term of 12 months (the "Initial Term"), unless earlier terminated in accordance with this Article 6. This Agreement shall **not** automatically renew. At least thirty (30) days prior to the end of the Initial Term, Provider shall provide Customer with a renewal quote for a subsequent term, and the parties shall negotiate in good faith regarding renewal; absent a signed renewal order, this Agreement shall expire at the end of the Initial Term.

Either party may terminate this Agreement for cause if the other party materially breaches this Agreement and fails to cure such breach within thirty (30) days after receiving written notice thereof. Provider may suspend or terminate Services immediately upon notice if Customer fails to pay any undisputed amount within fifteen (15) days after it becomes past due.

Upon termination or expiration of this Agreement, Customer shall pay all Fees accrued through the effective date of termination. Sections that by their nature should survive termination, including confidentiality, payment obligations, intellectual property, limitation of liability, and dispute resolution, shall survive.

Article 7. Confidentiality

Each party agrees to protect the other party's Confidential Information using the same degree of care it uses to protect its own confidential information of similar nature, but in no event less than reasonable care. Neither party shall disclose the other party's Confidential Information to any third party except to Affiliates, employees, contractors, and advisors who have a need to know such information and who are bound by confidentiality obligations at least as protective as those herein.

Confidential Information does not include information that: (a) is or becomes publicly available through no fault of the receiving party; (b) was rightfully known to the receiving party prior to disclosure; (c) is rightfully obtained by the receiving party from a third party without restriction; or (d) is independently developed by the receiving party without use of or reference to the disclosing party's Confidential Information.

These confidentiality obligations shall survive termination of this Agreement for a period of three (3) years, except with respect to trade secrets, which shall be protected for as long as such information remains a trade secret under applicable law.

Article 8. Intellectual Property

Except as expressly set forth in this Agreement, Provider retains all right, title, and interest in and to the Services, all Deliverables (subject to any assignment expressly provided for in an applicable Statement of Work), and all underlying technology, know-how, and Intellectual Property Rights therein. Customer retains all right, title, and interest in and to Customer's data, content, and pre-existing materials.

Provider grants Customer a limited, non-exclusive, non-transferable license during the Term to access and use the Services solely for Customer's internal business purposes, subject to the terms of this Agreement.

Article 9. Warranties and Disclaimers

Each party represents and warrants that it has the full right, power, and authority to enter into this Agreement. Provider represents and warrants that the Services will be performed in a professional and workmanlike manner consistent with generally accepted industry standards.

EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT, THE SERVICES AND DELIVERABLES ARE PROVIDED "AS IS" WITHOUT WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT.

Article 10. Limitation of Liability

EXCEPT FOR BREACHES OF CONFIDENTIALITY OBLIGATIONS, INDEMNIFICATION OBLIGATIONS, OR A PARTY'S GROSS NEGLIGENCE OR WILLFUL MISCONDUCT, IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES ARISING OUT OF OR RELATED TO THIS AGREEMENT, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

EACH PARTY'S TOTAL CUMULATIVE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID BY CUSTOMER UNDER THIS AGREEMENT IN THE SIX (6) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

Article 11. Indemnification

Provider shall defend, indemnify, and hold harmless Customer from and against any third-party claim alleging that the Services, as provided by Provider and used by Customer in accordance with this Agreement, infringe such third party's Intellectual Property Rights, and shall pay any damages, costs, and reasonable attorneys' fees finally awarded against Customer as a result, provided that Customer promptly notifies Provider of such claim and cooperates in the defense thereof.

Article 14. Export Control and Compliance

Each party shall comply with all applicable export control and economic sanctions laws and regulations, including those administered by the U.S. Department of Commerce and the U.S. Department of the Treasury's Office of Foreign Assets Control. Neither party shall export, re-export, or transfer any technology or materials provided under this Agreement in violation of such laws.

Each party represents that it is not identified on any applicable list of prohibited or restricted parties, including the U.S. Treasury Department's List of Specially Designated Nationals or the U.S. Commerce Department's Denied Persons List or Entity List.

Article 15. Notices

All notices required or permitted under this Agreement shall be in writing and shall be deemed given when delivered personally, sent by confirmed email, or sent by nationally recognized overnight courier, in each case

to the address set forth below or such other address as a party may designate by written notice in accordance with this Article.

If to Provider: Rally, Inc., 548 Market Street, Suite 200, San Francisco, CA 94104

If to Customer: Ironclad Fitness Group, LLC, 4410 Harborview Drive, Tampa, FL 33602

Article 12. Miscellaneous

This Agreement, together with all Exhibits attached hereto, constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior or contemporaneous agreements, understandings, and communications, whether written or oral. This Agreement may be amended only by a written instrument signed by authorized representatives of both parties.

Neither party may assign this Agreement without the prior written consent of the other party, except that either party may assign this Agreement without consent in connection with a merger, acquisition, or sale of substantially all of its assets. This Agreement shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of laws principles. Any dispute arising out of or relating to this Agreement shall be resolved exclusively in the state or federal courts located in San Francisco County, California, and each party consents to the personal jurisdiction of such courts.

If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall remain in full force and effect. No waiver of any provision of this Agreement shall be effective unless in writing and signed by the waiving party. Neither party shall be liable for any delay or failure to perform resulting from a Force Majeure Event.

Exhibit B — Authorized Locations

The Subscription Services shall be made available for use at the following Ironclad Fitness Group, LLC locations as of the Effective Date. Customer may add locations during the Term by mutual written agreement of the parties and payment of the then-current per-location fee.

Location	Address
Ironclad Fitness — Harborview	4410 Harborview Drive, Tampa, FL 33602
Ironclad Fitness — Westshore	220 Westshore Plaza, Tampa, FL 33607
Ironclad Fitness — St. Petersburg	980 Central Avenue, St. Petersburg, FL 33705

Signatures

IN WITNESS WHEREOF, the parties have caused this Agreement to be executed by their duly authorized representatives as of the Effective Date first written above.

Rally, Inc.

/s/ Jordan Reyes

Jordan Reyes, VP Customer Success

Date: May 15, 2026

Ironclad Fitness Group, LLC

/s/ Marcus Webb

Marcus Webb, Chief Operating Officer

Date: May 15, 2026